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IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH,
Plaintiff,

v.

TYLER JAMES ROBINSON,
Defendant.

**STATE’S OPPOSITION TO
MOTION TO CLASSIFY
DEFENDANT’S MOTION FILED
JANUARY 9, 2026 AS PRIVATE**

Case No. 251403576

Judge Tony F. Graf, Jr.

The State opposes Defendants’ Motion to Classify as Private Defendant’s Motion Filed January 9, 2026, (Dkt. 285) (the “Motion”). Defendant has not rebutted the presumption that the filing should be public.

ARGUMENT

Defendant’s motion is presumptively a public court record. *See* Utah Code Jud. Admin. R. 4-202.02(1) & (2)(f); *see also State v. Allgier*, 2011 UT 47, ¶ 10, 258 P.3d 589 (letter received and retained by court was presumptively public court record). To rebut this presumption, Defendant must demonstrate that (1) the interests favoring restricting access

to the record outweigh the interests favoring public access, and (2) there are no reasonable alternatives to restricting access to the record. *See* Utah Code Jud. Admin. R. 4-202.04(6); *Allgier*, 2011 UT 47, ¶¶ 14-16. This Court must make findings and conclusions on both factors as they relate to Defendant’s January 9th motion. *See* Utah Code Jud. Admin. 4-202.04(6); *Allgier*, 2011 UT 47, ¶¶ 14-16. After considering these factors here, the Court should find that Defendant has not rebutted the presumption of public access.

Defendant’s justification for restricting access to his motion is inadequate. Defendant argues only that the “motion addresses evidence that has not yet been found to be admissible” and that this evidence “could easily taint potential jurors.” Mot. at 2. But Defendant does not articulate any ground on which the evidence discussed in his motion could be found to be inadmissible. A court might decide to restrict access to portions of court records that discuss evidence that has already been found to be inadmissible at trial. *See United States v. McVeigh*, 119 F.3d 806, 813 (10th Cir. 1997) (affirming order redacting portions of filings that discussed evidence found to be inadmissible). But the mere fact that a court has not ruled on the admissibility of certain evidence cannot be a sufficient basis for restricting access to a record discussing that evidence. If it were, then most pre-trial filings discussing evidence would be presumptively protected. But rule 4-202.02(1) plainly establishes the opposite presumption.

Nor does Defendant explain, even in general terms, why exposure to information about the evidence in the motion would so taint potential jurors that he could not receive a fair trial. As the United States Supreme Court has held, “pretrial publicity, even if pervasive and concentrated, cannot be regarded as leading automatically and in every kind of criminal

case to an unfair trial.” *Nebraska Press Ass’n v. Stuart*, 427 U.S. 539, 565 (1976). On the contrary, courts have well-established processes for assessing and mitigating the effect of pre-trial publicity on potential jurors. *See State v. Allgier*, 2011 UT 47, ¶¶ 19-20, 258 P.3d 589. As the Utah Supreme Court recognized, even in highly publicized cases a defendant’s right to a fair trial can be protected “through the regular, time-honored processes for selecting jurors” like enlarging the venire of potential jurors, utilizing a detailed juror questionnaire, and conducting a thorough voir dire of potential jurors. *Id.* ¶ 19.

Given Defendant’s inadequate justification for restricting access to his motion, and the existence of these “reasonable ways to ensure a fair trial” despite pre-trial publicity, Defendant has not rebutted the presumption that the public should have access to his motion.

CONCLUSION

For the foregoing reasons, the Court should deny the motion.

Dated January 29, 2026.

Utah County Attorney’s Office

s/ Christopher D. Ballard
Christopher D. Ballard
Deputy Utah County Attorney

Counsel for Plaintiff

CERTIFICATE OF SERVICE

I certify that on January 29, 2026, I filed the foregoing **STATE'S OPPOSITION TO MOTION TO CLASSIFY DEFENDANT'S MOTION FILED JANUARY 9, 2026 AS PRIVATE** through the court's electronic filing system, which served a copy on all counsel of record. I also emailed a copy to counsel for the interested news media as follows:

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